

The Orissa Minimum Wages Rules, 1954

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State of Odisha - Act

The Orissa Minimum Wages Rules, 1954

ODISHA

India

The Orissa Minimum Wages Rules, 1954

Rule THE-ORISSA-MINIMUM-WAGES-RULES-1954 of 1954

Published on 3 April 2001

Commenced on 3 April 2001

[This is the version of this document from 3 April 2001.]

[Note: The original publication document is not available and this content could not be verified.]

The Orissa Minimum Wages Rules, 1954

Published vide Notification Orissa Gazette, Part-3, No. 17/23.4.1954-see Notification No. 2227. VL-145/52 Lab./20 4.1954

In exercise of the powers conferred by Section 30 of the Minimum Wages Act 11 of 1948, the Governor of Orissa is pleased to make the following rules, the same having been previously published as required by the said section of the said Act.

Chapter-I Preliminary

1.

Short title and extent.

(1)

These rules may be called the Orissa Minimum Wages Rules, 1954.

(2)

They extend to the whole of the State of Orissa.

2.

Interpretation.

- In these rules, unless the context otherwise requires-

(a)

"Act" means the Minimum Wages Act, 1948;

(b)

"Authority" means the authority appointed under Sub-section (1) of Section 20;

(c)

"Board" means the Advisory Board appointed under Section 7;

(d)

"Chairman" mean the Chairman of the Advisory Board, or the Committee, as the case may be, appointed under Section 9;

(e)

"Committee" means a Committee appointed under Clause (a) of Sub-section (1) of Section 5 and includes a Sub-Committee appointed under that section;

(f)

"Form" means a Form appended to these rules;

(g)

"Inspector" means a person appointed as Inspector under Section 19;

(h)

"registered Trade Union" means a trade union registered under the Indian Trade Unions Act, 1926;

(i)

"section" means a section of the Act; and

(j)

all other words and expressions used herein but not defined shall have the meaning respectively assigned to them under the Act.

Chapter-II Membership, meeting and staff of the Board and Committee

3.

Term of office of the members of the Committee.

- The term of office of the members of the Committee shall be such as in the opinion of the State Government is necessary for completing the enquiry into the scheduled employment concerned and the State Government may at the time of the constitution of the Committee, fix such terms and may, from time to time, extend it as circumstances may require

4.

Term of office of members of the Board.

(1)

Save as otherwise expressly provided in these rules, the term of office of a non-official member of the Board shall be two years commencing from the date of his nomination:

Provided that such members shall, notwithstanding the expiry of the said period of two years, continue to hold office until his successor is nominated.

(2)

A non-official member of the Board nominated to fill a casual vacancy shall hold office for remaining period of the term of office of the member in whose place he is nominated.

(3)

The official member of the Board shall hold office during the pleasure of the State Government.

4A.

Nomination of substitute members

- If a member is not able to attend meeting of the Committee or the Board he shall intimate to the State Government in writing at least a week before the date of the meeting and along side may suggest a substitute in his place for the

meeting. The State Government will then take steps to nominate him to attend that meeting. The substitute member shall have all the rights of a member in respect of that meeting.

5.

Travelling allowance.

- A non-official member of the Committee or the Board shall be entitled to draw travelling and halting allowances for any journey performed by him in connection with his duties as such member at the rates prescribed by the State Government from time to time for non-official members of such bodies.

6.

Staff.

(1)

The State Government may appoint a Secretary to the Committee or the Board, and such other staff as it may think necessary and may fix the salaries and allowances payable to them and specify their conditions of service.

(2)

(i)

The Secretary shall be the Chief Executive Officer of the Committee or the Board, as the case may be. He may attend the meetings of such Committee or Board but shall not be entitled to vote at such meetings.

(ii)

The Secretary shall assist the Chairman in convening meetings and shall keep a record of the minutes of such meetings and shall take necessary measures to carry out the decision of the Committee or the Board, as the case may be.

7.

Eligibility for re-nomination of the members of the Committee and the Board.

- An outgoing member shall be eligible for re-nomination for the membership of the Committee or the Board, of which he was a member.

8.

Resignation of the Chairman and members of the Committee and the Board and filling of casual vacancies.

(1)

A member of the Committee or the Board other than the Chairman may, by giving notice in writing to the Chairman, resign his membership.

(2)

The Chairman may resign by letter addressed to the State Government.

(3)

When a vacancy occurs or is likely to occur in the membership of the Committee or the Board, the Chairman shall submit a report to Government immediately. Government shall then take steps to fill the vacancy.

9.

Cessation and restoration of memberships.

- If a member of the Committee or the Board fails to attend three consecutive meetings, he shall, subject to the provisions of Sub-rule (2), cease to be a member thereof.

(2)

A person, who ceases to be a member under Sub-rule (1) shall be given intimation of such cessation by a letter sent to him by registered post within fifteen days from the date of such cessation. The letter shall indicate that if he desires restoration of his membership, he may apply therefor within thirty days from the receipt of such letter. The application for restoration of membership, if received within the said period, shall be placed before the Committee or the Board, as the case may be, and if a majority of members present at the next meeting is satisfied that the reasons for failure to attend three consecutive meetings are adequate, the members, shall be restored to membership immediately after a resolution to that effect is adopted.

10.

Disqualification.

(1)

A person shall be disqualified for being nominated as, and for being, a member of the Committee or the Board, as the case may be-

(i)

if he is declared to be of unsound mind by a competent Court; or

(ii)

if he is an undischarged insolvent; or

(iii)

if before after the commencement of the Act, he has been convicted of an offence involving moral turpitude.

(2)

If any question arises whether a disqualification has to be incurred under Sub-rule (1) the decision of the State Government thereon shall be final.

11.

Meetings.

- The Chairman may, subject to the provisions of Rule 12, call a meeting the Committee or the Board, as the case may be, at any time as he thinks fit :

Provided that on a requisition in writing from not less than one-half of the members, the Chairman shall call a meeting within fifteen days from the date of the receipt of such requisition.

12.

Notice of meetings.

- The Chairman shall fix the date, time and place of every meeting, and a notice in writing containing the aforesaid particulars along with a list of business to be conducted at the meeting shall be sent to each member by registered post at least fifteen days before the date fixed for such meeting :

Provided that in the case of an emergent meeting, notice of seven days only may be given to every member.

13.

Chairman.

(1)

The Chairman shall preside at the meetings of the Committee or the Board, as the case may be.

(2)

in the absence of the Chairman at any meeting the member shall elect from amongst themselves one member, by a majority of votes, who shall preside at such meeting.

14.

Quorum.

- No business shall be transacted at any meeting unless at least one-third of the members and at least one representative of both employers and employees are present :

Provided that if at any meeting no representative of the employers or employees has turned up; or less than one-third of the members are present, the Chairman may adjourn the meeting to a date not later than seven days from the date of the original meeting and it shall thereupon be lawful to dispose of the business at such adjourned meeting irrespective of the number of members present.

15.

Disposal of business.

- All business shall be considered at a meeting of the Committee or the Board, as the case may be, and shall be decided by a majority of votes of the members present and voting. In the event of an equality of votes the Chairman shall have a casting vote :

Provided that the Chairman may, if he thinks fit, direct that any matter shall be decided by the circulation of necessary papers and securing written opinion of the members :

Provided further that no decision on any question which is referred under the first proviso shall be taken unless supported by not less than a two-third majority of the members,

16.

Method of voting.

- Voting shall ordinarily be by show of hands, but if any member asks for voting by ballot, or if the Chairman so decides, the voting shall be by secret ballot and shall be held in such manner as the Chairman may decide.

17.

Proceedings of the meeting.

(1)

The proceedings of each meeting showing inter alia the names of the members present thereat shall be forwarded to each member and to the State Government as soon after the meeting as possible and in any case, not less than seven days before the next meeting.

(2)

The proceedings of each meeting shall be confirmed with such modifications, if any, as may be considered necessary, at the next meeting.

Chapter-III Summoning of the witnesses by the Committee and the Board and production of documents

18.

Summoning of witnesses and production of documents.

(1)

A Committee of the Board may summon any person to appear as a witness in the course of an enquiry. Such summons may require a witness to appear before it on a date specified therein and to produce any books, papers or other documents and things in his possession or under his control relating to any matter to the enquiry.

(2)

A summons under Sub-rule (1) may be addressed to an individual or an Organisation of employers or a registered trade union of workers.

(3)

A summons under this rule may be served-

(i)

in the case of an individual by being delivered or sent to him by registered post;

(ii)

in the case of an employers' Organisation or a registered trade union of workers, by being delivered or sent by registered post to the Secretary or other principal officer of the Organisation or union, as the case may be.

(4)

The provisions of the Civil Procedure Code relating to the summoning and enforcement of the appearance of witnesses, and the production of documents shall, so far as may be, apply to proceedings before a Committee or, the Board.

(5)

All books, papers and documents or things produced before a Committee of the Board in pursuance of the summons under Sub-rule (1) may be inspected by the Chairman and the independent members and also by such parties as the Chairman may allow with the consent of the other party, but information obtained therefrom shall not be made public :

Provided that nothing contained in the sub-rule shall apply to the disclosure of any such information for the purpose of a prosecution under Section 193 of the Penal Code XLV of 1860.

19.

Expenses of witnesses.

- Every person who is summoned and appears as a witness before the Committee or the Board shall be entitled to an allowance for expenses incurred by him in accordance with the scale for the time being in force for payment of the allowances as appearing in Civil Court in the State.

Chapter IV

Computation and payment of wages, hours of work and holidays

20.

Mode of computation of the cash value of wages.

- The retail prices at the nearest market shall be taken into account in computing the cash value of wages paid in kind and of essential commodities supplied at concession rates. This computation shall be made in accordance with such directions as may be issued by the Government from time to time.

21.

Time and conditions of payment of wages and the deduction permissible from wages.

(1)

(i)

The wage period with respect to any scheduled employment for which wages have, been fixed shall not exceed one month and the wages of a worker in such employment shall be paid before the expiry of the seventh day after the last day of the wage period.

(ii)

Where the employment of any person is terminated by or on behalf of the employer, the wages earned by him shall be paid before the expiry of the second working day after the day on which his employment is terminated or in case of closure of establishment or termination of services or retrenchment on a large scale, payment shall commence before the expiry of the second working day and shall be completed within a week.

(iii)

The wages of an employed person shall be paid to him without deduction of any kind except those authorised by or under this rule.

Explanation - Every payment made by the employed person to the employer or his agent shall, for the purposes of these rules, be deemed to be a deduction from wages.

(2)

Deductions from the wages of a person employed in a scheduled employment shall be of one or more of the following kinds, namely :

(i)

finances in respect of such acts and omissions on the part of the employees may be specified by the State Government by general or special order in this behalf;

(ii)

deductions for absence from duty;

(iii)

deductions for damage to or loss of goods expressly entrusted to the employed person for custody, or for loss of money to which he is required to account where such damage or loss is directly attributable to his neglect or default;

(iv)

deductions of house accommodation supplied by the employers or by the State Government or by any Housing Board or agency which the State Government may, notify, in this behalf;

(v)

deductions for such amenities and services supplied by the employer as the Government may by general or special order authorise;

Explanation - The word 'amenities and services' in this clause do not include the supply of tools and protectives required for the purposes of employment-

(vi)

deductions for recovery of advances or for adjustment of overpayment of wages :

Provided that such advances do not exceed an amount equal to wages for two calendar months of the employed person and in no case shall the monthly instalment of deduction exceed one-fourth of the wages earned in that month;

(vii)

deductions of income-tax payable by the employed person;

(viii)

deductions required to be made by order of a Court of other competent authority;

(ix)

deductions for subscriptions to, and for payment of advance from any Provident Fund to which the Provident Fund Act, 1925 applies or any recognised Provident Fund as defined in Section 58-A of the Indian Income-tax Act, 1951, or any Provident Fund approved in this behalf by the Government during the continuance of such approval;

(x)

deduction for payment of Co-operative Societies or deductions made with the written authorisation of the person employed, for payment of any premium of his life insurance policy to the Life Insurance Corporation of India established under the Life Insurance Act 31 or 1956;

(xi)

deductions made with the written authorisation of-

(a)

the employed person ; or

(b)

the President or Secretary of the Registered Trade Union of which the employed person is a member on such conditions

as may be prescribed, for contribution to the National Defence Fund or to any Defence Savings Scheme approved by the Central Government.

(3)

Any person desiring to impose a fine on an employed person or to make deduction for damage or loss caused by him shall explain to him personally and also in writing the act or omission or the damage or loss, in respect of which the fine or deduction is proposed to be imposed or made and give him an opportunity to offer any explanation in the presence of another person. A record shall be maintained on the above proceeding and the amount of fine or deduction shall also be intimated to the person concerned.

(4)

[The amount of fine or deduction for damage or loss mentioned in sub-rule(3) shall be subject to such limits as may be specified in this behalf by the State Government. All such fines imposed and deductions made from any employee shall be recorded in the Combined Register of fines, deduction for damage or loss and advances in Form-I. The Register shall be kept at the work-spot and maintained up-to-date. Where no fine has been imposed or deduction has been made from any employee in a wage period, a nil entry shall be made across the body of the relevant register at the end of the wage period indicating also in precise terms the wage period to which the nil entry relates.]

[Substituted vide O.G.E. No. 454 dated 27.3.2009.]

(4-A) Every employer shall send annually a return in Form III showing the deductions from wages so as to reach the Inspector not later than the 1st February following the end of the year to which it relates.

(5)

The amount of fine imposed under Sub rule (3) shall be utilised only for such purposes beneficial to the employees as are approved by the State Government or any other officer authorised by them in this behalf.

(6)

Nothing in this rule shall be deemed to affect the provisions of the Payment of Wages Act, 1936.

22.

Publicity to the minimum wage fixed under the Act.

- Notice in Form IX-A containing the minimum rates of wages fixed together with the extracts from the Act, the rules made thereunder and the name and address of the Inspector shall be displayed in English and in a language understood by the majority of the workers in the employment at the main entrances to the establishment and at its office and shall be maintained in a clean and legible condition. Such notices in Form IX-A shall also be displayed on the notice boards of all Sub-divisional and District Officers.

23.

Weekly holidays.

(1)

No worker shall be required or allowed to work in a scheduled employment, on the first day of the week (hereinafter referred to as the said day) except when he has or will have a holiday for the whole day on one of the five days immediately before or after the said day for which he shall receive payment equal to his average daily wages during the preceding week :

Provided that the weekly holiday may be substituted by another day:

Provided further that no substitution shall be made which will result in any working for more than ten days consecutively without a holiday for a whole day.

[* * *]

[Deleted vide Orissa Gazette Extraordinary No. 691/9.5.1985-Notification S.R.O No. 237/85/ 2.5.1985.]

(2)

Where in accordance with the provisions of Sub-rule (1) any worker works on the said day and has had a holiday on one of the five days immediately preceding it, the said day shall, for the purposes of calculating his weekly hours of work, be included in the preceding week.

Explanation - For the purposes of this rule 'week' shall mean a period of seven days beginning at midnight on Saturday night.

24.

Number of hours of work which shall constitute a normal working day.

(1)

The number of hours of work which shall constitute a normal working day shall be-

(a)

in the case of an adult, 9 hours;

(b)

in the case of a child, 4 1/2 hours.

(2)

The working day of an adult worker shall be so arranged that inclusive of the intervals for rest, if any, shall not spread over more than twelve hours on any day.

(3)

The number of hours of work in the case of an adolescent shall be the same as that of an adult or a child according as he is certified to work as an adult or a child by a competent medical practitioner approved by the State Government.

(4)

The provisions of Sub-rules (1) to (3) shall in the case of workers in agricultural employments, be subject to such modifications as may, from time to time, be notified by the State Government.

(5)

Nothing in this rule shall be deemed to affect the provisions of the Factories Act, 1948 in so far as it is applicable to the workers of any of the scheduled employments.

(6)

No child shall be employed or permitted to work more than 4 1/2 hours on any day.

25.

Extra wages for overtime.

- [(1) When a worker works in an employment for more than nine hours on any day or for more than forty-eight hours in any week, he shall, in respect of such overtime work, be entitled to wages at double the ordinary rate of wages.

Explanation - The expression "ordinary rate of wages" means the basic wages plus such allowances including the cash equivalent of the advantages accruing through the concessional sale to the person employed of the foodgrains and other articles as the person employed is for the time being entitled to but does not include a bonus.]

[Substituted vide Orissa Gazette Extraordinary No. 691/9.5.1991-Notification S.R.O. No. 237/85/ 2.5.1985.]

(2)

[A combined register of overtime working and payment]

[Substituted vide O.G.E. No. 454 dated 27.3.2009.]

shall be maintained by every employer in Form IV in which entries under the columns specified therein shall be made as and when overtime is worked in any establishment. The register shall be kept at the workspot and maintained up-to-date. Where no overtime has been worked in any wage period a nil entry shall be made across the body of the register at the end of the wage period including also in precise terms the wage period to which the nil entry relates.

26.

Form of registers and other records.

(1)

A register of [Combined Muster Roll-cum-Register of Wages] shall be maintained by every employer at the workspot in Form X.

(2)

A wage slip in Form XI shall be issued by every employer to every person employed by him at least a day prior to the disbursement of wages.

(3)

Every employer shall get the signature or the thumb impression of every person employed on the

[Substituted vide O.G.E. No. 454 dated 27.3.2009.]

[Combined Register of Muster Roll-cum-Register of Wages] and wage slip.

(4)

Entries in the [Combined Register of Muster Roll-cum-Register of Wages] and wage slips shall be authenticated by the employer or any person authorised by him in this behalf.

[* * *]

[Deleted vide O.G.E. No. 454 dated 27.3.2009.]

(5)

[]

[Re-numbered vide O.G.E. No. 454 dated 27.3.2009.]

Working hour notice showing the spread over and hours of work shall be displayed in Form XII at such place or places as may be directed by the Inspector and the same shall be maintained in a clean and legible condition.

26A.

Preservation of register

- A register is required to be maintained under Rules 21 (4), 26 (2) and 26 (1) and [* * *]

[Deleted vide O.G.E. No. 454 dated 27.3.2009.]

shall be reserved for a period of three years after the date of last entry made therein.

26B.

Production of register's and other records

(1)

All registers and records required to be maintained by an employer under these rules shall be produced on demand before the Inspector during the course of the inspection of the establishment :

Provided that the Inspector may, if necessary, demand the production of the registers and records in office or such other public place as may be nearer to the employer.

(2)

Any infringement of the provisions of the Act or these rules noticed by the Inspector and communicated to the employer during the course of an inspection or otherwise, shall be certified by the employer and compliance report in respect thereof shall be submitted to the Inspector, on or before the date specified by him in this behalf.

26C.

[

[Inserted vide Orissa Gazette Extraordinary No. 691/9.5.1991-Notification. S.R.O. No. 237/85/2.5.1985.]

Notwithstanding anything contained in these rules, the State Government may permit use of any alternative suitable form in lieu of any of the forms prescribed under these rules, where a combined (alternative) form is sought to be used by the employer to avoid duplication of work for compliance with the provisions of any other Act or the rules framed thereunder.]

Chapter-V Claims under the Act

27.

Application.

- An application under Sub-section (2) of Section 20 or Sub-section (2) of Section 21, by or on behalf of an employed person or group of employed persons shall be made in duplicate in Forms VI and VII, as the case may be.

28.

Authorisation.

- The authorisation to act on behalf of an employed person or persons, under Sub-section (2) of Section 20 or of Sub-section (1) of Section 21 shall be given in Form VIII by an instrument which shall be presented to the Authority hearing the application and shall form part of the record.

29.

Appearance of parties.

(1)

If an application under Sub-section (2) of Section 20 or Section 21 is entertained, the Authority shall serve upon the employer by registered post a notice in Form IX to appear before him on a specified date with all relevant documents and witnesses, if any, and shall inform the applicant of the date so specified.

(2)

If the employer or his representative fails to appear on the specified date, the authority may hear and determine the application ex parte.

(3)

If the applicant or his representative fails to appear on the specified date, the Authority may dismiss the application.

(4)

An order passed under Sub-rule (2) or Sub-rule (3) may be set aside on sufficient cause being shown by the defaulting

party within one month of the date of the said order, and the application shall then be re-heard after service of notice on the opposite party of the date fixed for rehearing, in the manner specified in Sub-rule (1).

Chapter-VI Scale of costs in proceedings under the Act

30.

Costs.

(1)

The Authority, for reasons to be recorded in writing, may direct that the costs of any proceeding pending before it shall not follow the event.

(2)

The costs which may be awarded shall include-

(i)

expenses incurred on account of Court-fee;

(ii)

expenses incurred on subsistence money to witness; and

(iii)

Pleader's fees to the extent of ten rupees provided that the Authority in any proceeding, may reduce the fees to a sum not less than five rupees or for reasons to be recorded in writing increase it to a sum not exceeding twenty-five rupees.

(3)

Where there are more than one pleader or more than one applicant or opponent, the Authority may, subject as aforesaid, award to the successful parties such costs as it may deem proper.

31.

Court-fees.

- The Court-fee payable in respect of proceedings under Section 20 shall be-

(i)

for every application to summon a witness-One rupee in respect of each witness;

(ii)

for every application made by or on behalf of an individual-One rupee ;

Provided that the Authority may, if in its opinion the applicant is a pauper, exempt him wholly or partly from the payment of such fees :

Provided further that no fee shall be chargeable-

(a)

from persons employed in agriculture; or

(b)

in respect of an application made by an Inspector.

[Form-I]

[Substituted vide O.G.E. No. 454 dated 27.3.2009.]

Combined Register of Fines, deductions for Damage or Loss and Advances

In lieu of 1. Form No. III of Rule 21 (4) of Orissa Minimum Wages Rules, 1954

2. Form No. XVII, XVI, XVIII of Rule, 78 (d) (fine), 77 (22) (d) (dedu.), m 77 (2) (d) (adv.) of Orissa Contract Labour (R & A) Rules, 1975.

3. Form No. I, II, III under Rule 3 (1) (fine), 4 (deductions) and 17 (3) (advances) of Orissa Payment of Wages Rules, 1936.

4. Form XIX, XX, XXI of Rule 52 (2) C of Orissa I.S.M.W (RE &CS) Rules, 1980.

5. Form XX, XIX and XXI under Rule-239 (1) (b) of Orissa Building other Construction Workers (RE & CS) Rules, 2002.

Sl. No.

Name of the Employee/ Father's/ Husband's name

Designation Emp. No./ Sl. No. in register of

employees

Nature & date of offence for which fine

imposed

Date and particulars of damages/ loss caused

Whether worker showed cause against fine or deductions

- 1
- 2
- 3
- 4
- 5
- 6

Amount of the fine imposed/ deduction made

Date & purpose for which advance was made

Amount of advance made & purpose thereof

No. of instalments granted for repayment of fines/ deductions/ advances

Wages period and rate of wages payable

Date of recovery of fine/deduction/ advance

First Instalment

Last Instalment

- 7
- 8
- 9
- 10
- 11
- 12
- 13

Signature of the Employer/Principal Employer/Authorized signator

[Form-IV]

[Substituted vide O.G.E. No. 454 dated 27.3.2009.]

Combined Annual Returns

In the Lieu of

- (i)
Form-21, Rule-101(1) Orissa Factories Rules, 1950
- (ii)
Form XX, Rule-81 (I) Form XXI, Rule-81(2) Orissa Contract Labour (R&A) Rules,1975
- (iii)
Form-III, Rule-21 (4-A) Orissa Minimum Wages Rules,1954
- (iv)
Form-IV, Rule-18, Orissa Payment of Wages Rules,1936
- (v)
Form 'D', Rule-5, Payment of Bonus Rules, 1975 (Central)
- (vi)
Form 13, Rule-28, Orissa Shops and Commercial Rules, 1958
- (vii)
Form XIII, Rule-39, Orissa Motor Transport Workers Rules,1966
- (viii)
Form L, Rule-16, Orissa Maternity Benefit Rules, 1966
- (ix)
Form 'V', Rule-8,0.1.E (N&A) II Rules, 1972
- (x)
Form XXV, Rule 240, Orissa Building and Other Construction Workers (RECS), Rules-2002
- (xi)
Form XXIV, Rule 56(2) of Orissa Interstate Migration Workers (RECS) Rules, 1980

A. General Particulars-

(a)

Name and full address of the Factory/Establishment (including Building and Other Construction of Work/Motor Transport undertakings)

Factory/Establishment

Regd./Administrative/ Head Office

Name

Address

Tel :Fax :E-mail :Website :

(b)

Name and Residential address of the Proprietor/ Partner/ Directors /Employer/ Principal/Employer/Occupier, (tick which ever is applicable)

Sl. No.

NameFather's Name

Designation

Residential Address

Tel/Mobile/E-mail

(1)

(2)

(3)

(4)

(5)

(c)

Name and Residential Address of the Person responsible for the day to day conduct and control of business.

Name

Residential Address

Tel/Mobile/E-mail

(d)

Name and Residential address of the occupier and Mgr. as named under the Factories Act, 1948.

Sl. No.

Name

Designation

Residential Address

Tel/Mobile/E-mail

(1)

(2)

(3)

(4)

(5)

2. Date of commencement of Manufacturing/Business/Establishment/ Factories/Construction of Works.

2. (A) Nature/Type of Industries/Establishments.

2. (B) Particulars of Products Manufactured/Services Rendered.

Name of the Product/ Services

Annual Installed capacity

Quantity Manufactured

Percentage achieved

Value

3. Registration and License

Registration No.

License No.

(a)

Factories Act, 1948

(b)

Contract Labour (R&A) Act, 1970

(c)

O.S and C.E. Act, 1956

(d)

ISMW (R&CE) Act, 1979

(e)

M.T.W. Act, 1961

(f)

Building and Other Construction Workers (RECS) Act, 1996

4. No. of Workmen/employees/employed

Sl. No.

Category

Male

Female

Adolescent/ Adult

Child

Total No. of Employees

(1)

(2)

(3)

(4)

(5)

(6)

(7)

1

Unskilled

2

Semi-skilled

3

Skilled

4

Highly skilled

5

ITI / Diploma

6

Degree-Engg.

7

Executive

8

Probationer /Trainees

5. Particulars of Employment/Payment in Factories/Establishments/Motor Transport Undertakings / Building Construction of Work.

(a)

{|

|-

| No of Person on Roll as on 1st January

| No. of Person on Roll as on 31st December

| No. of days Factory/ Establishment/ Building &
Other Construction Works/Carried on

| No. of days Factory / Establishment/ Closed

| No. of Mondays worked during the year

| No. of man-hours worked including O.T. during the year

| Total Amount of salary/ wage paid including O.T. wages & allowances

| -

|

|

|

|

|

|

|

|}

(b)

Average Number of Employment during the year:-

Men

Women

Total

(c)

No. of employees discharged/dismissed/terminated/retrenched/Resigned or retired during the year.

Men

Women

Total

In respect of Minimum Wages & Payment of Wages etc.

6. Particulars of deduction made from salary (wages) under M.W. and P.W. Act.

No. of Employees involved

Total Amount of deduction made

1. Fines

2. Damages / Loss

3. Breach of Contract

4. Others

5. Total

In respect of the Factories Act / Orissa Shops & Commercial Establishment Act, 1956 /Orissa Industrial Establishment (National & Festival) Holidays Act, 1972.

7. Particulars of Earned Leave with Wages/National Festival Holidays with Wages.

Total No. of Persons employed

No. of Employees eligible for Earned Leave

No. of employees availed/granted Earned Leave

No. of employees paid wages/salary in lieu of Earned Leave

No. of Person who were paid wages for the NFIT (separate figure for each day may be furnished)

1. Man

2. Woman

(i) 26th January(ii) 1st May(iii) 15th August(iv)

2nd October(v)(vi)(vii)(viii)

Total

In respect of Payment of Bonus

8. Payment of Bonus paid during the year

Name of the Accounting year

Total No. of employees

No. of Employees eligible for Bonus
Percentage of Bonus/Ex gratiadeclared
Total amount of Bonus/Ex gratiapaaid
Date of Payment

1
2
3
4
5
6

Relating to the Factories Act

9. Does the Factory carry on hazardous process under section-2(cb) dangerous operation u/s 87 of Factories Act. 1948.

If Yes

Yes/No

(i)

Whether Health and Safety Policy prepared and published

Yes/No

(ii)

Whether occupational Health Centre provided

Yes/No

(iii)

Whether Medical Officer appointed

Yes/No

(iv)

Whether Ambulance Van provided

Yes/No

(v)

Average no. of persons employed daily in hazardous
process/dangerous operation

Yes/No

10. Safety and Welfare Officers:-

(a)

{|

|-

|

| No. of Officers required to be appointed

| No. of Officer actually appointed

|-

| (i) Safety Officers as per Section

40.

(B)

of Factories Act.

(ii)

Welfare Officers as per Section 49 of the Factories Act.

|

|

]|

(b)

Whether the following Welfare measures are provided ?

(i)

Ambulance Room as per Section 45(A)

Yes/No

(ii)

Canteen as per Section 46(1)

Yes/No

(iii)

Whether the canteen is run departmentally or through contractor departmentally/Contractor

(iv)

Creche as per Section 48(i)

Yes/No

(v)

Shelters, Rest Rooms and Lunch Room as per Section 47(1)

Yes/No

11. Particulars of Accidents, Man's days lost and others:-

(i)

Total no. of accidents that have taken place in the year.

(ii)

Number of employees involved in such accidents:-(a) Male (b) Female

(iii)

Total number of man days lost in such accident

(iv)

No. of employees returned to work within 48 hours of the accident

(v)

No. of employees returned to work after 48 hours of the accident (Reportable accident)

(a) Without Permanent /Partial/ Total Disablement

(b) With Permanent / Partial / Total Disablement

(vi)

Number of employees involved in accidents with either immediately or later within 7 days resulted in death.

Maternity Benefit Act

12. Maternity Benefit Act.

(a)

Rating to Maternity Benefits :

(i)

Total no. of women workers who worked for a period of 160 days in the last 12 months immediately preceding the date of delivery.

(ii)

No. of women workers discharged/dismissed in the last 12 months.

(iii)

No. of women worker for whom pre-natal confinement and postnatal confinement.

(iv)

No. of women workers died.

(a)

Before delivery. -

(b)

After delivery -

(b)

Leave/additional leave details :-

Item

No. of women applied for leave

Leave sanctioned

Leave reject

(i) Mis-carriage

(ii) Illness (additional leave under sec-10)

(c)

Maternity Benefit Paid :-

Item

No. of claim received

No. of leave sanctioned

No. of claims rejected

Total benefit paid in rupees

(i) Confinement

(ii) Mis-carriage

(iii) Illness

(iv) Medical Bureaus

Rating to Contract Labour (R&A) Act

13.

(a)

Contractor Labour

Name & Address of the Contractor/ Contractors

Period of contract From/To

Nature of work/ operation in which contract

labour were employed Deptt./ Section

No. of person employed

Maximum no. of contract workman employed on any
day during the year

No. of days worked

No. of man days worked

(i)(ii)(iii)(iv)

Total

(b)

Whether contract has provided ?

(i)

Canteen

Yes/No.

(ii)

Rest Room

Yes/No.

(iii)

Drinking Water

Yes/No.

(iv)

Creche

Yes/No.

(v)

First Aid

Yes/No.

(vi)

Remarks

Yes/No.

Relating to Building and Other Construction Workers (RE & CS) Act.

14. Particulars of accident that took place during the year :-

(i)

The total No. of accident.

(ii)

The number of accidents resulting in disablement of building workers for less than 48 hours, the number of building workers involved and the number of man-days lost.

(iii)

The number of accidents resulting in disablement of building worker beyond 48 hours, but not resulting in any permanent partial or permanent total disablement, the number of building workers involved and the number of man-days lost on account of such accident.

(v)

The number of accidents resulting on permanent partial or total disablement, the number of building workers involved and the number of man-days lost on account of such accident.

(v)

The number of accident resulting in deaths of building workers and the number of resultant deaths.

15. Inter-State Migrant Workmen (RE & CS) Act,

In respect of Principal Employer :

(i)

Number of contractors who worked in the establishment during the year with details.

Name & Address of the Contractor

Period of Contract

Nature of work

Maximum number of workers supplied by each contractor

No. of days worked

No. of man days worked

From

To

16. Beedi and Cigar Workers (Condition of Employment) Act, 1966 :-

(i)

Average number of employees employed daily in the Industrial Premises:-

Men

Women

Young person

Male

Female

(ii)

Average monthly number of home workers employed (i.e. who work in their homes)

(iii)

Number of days worked in the year in the industrial establishment.

(iv)

No. of employees who were granted leave during the calendar year.

Young persons

(a) employees in the Industries Premises.

(b) employees in home.

Other than young Persons

(a) employees in the Industrial Premises

(b) employed in home

(v)

Number of female employees who were given maternity benefit during the year

(a)

employees in the Industrial Premises

(b)

employed in home

Form V

[See Rule 26 (5)]

Muster Roll

Name of establishment.....Place.....

Serial No.

Name

Father's/ Husband's Name

Sex

Name of work

For the period ending

Remarks

12 3 4 5 6 7 8 9 10 11 12 13 14 15

Form VI

Form of application by an employee under Section 20 (2)

In the Court of the Authority appointed under the Minimum Wages Act, 1948 for.....Area

Application No.....of 20.....

(1)

}

(2)

Applicant(s)

(3)

(through.....a Legal Practitioner official of.....

Union which is a registered Trade Union).

Address :

Versus

(1)

}

(2)

Opponents

(3)

Address

The applicant(s) above-mentioned beg(s), respectfully to submit as follows:

(1)

That.....

(2)

That.....

The applicant(s) has (have) been paid wages at less than the minimum rate of wages.

The applicant (s) estimates the value of the relief sought by him (them) at the sum of Rs

The applicant (s) pray (s) that a direction may be issued under Subsection (3) of Section 20 for-

(a)

payment of the difference between the wages due according to the minimum rate of wages fixed by Government and the wages actually paid, and

(b)

compensation amounting to Rs.....

The applicant(s) beg(s) leave to amend or add to or make alterations in the application if and when necessary.

Date.....

Signature or thumb impression of employee(s) or legal practitioner or official of a registered trade union duly authorised

The applicant(s) do (es) solemnly declare that what is stated above is true to the best of his (their) knowledge, belief and informations

This verification is signed at.....on..... day of 20.....

Signature or thumb impression of employee or legal practitioner or official of a registered trade union duly authorised

When the application is by a group of employees, thumb impressions or signatures of two of the applicants need be put to the application and a full list of applicants should be attached to the application.

Form VII

Form of application by an Inspector or person acting with the permission of the Authority under Section 20 (2)

In the Court of the Authority appointed under the Minimum Wages Act, 1948 for.....Area.

Application No.....of 20....

(1) ?.....

Applicant

Address :

Versus

(2) ?.....

Opponent

Address :

The applicant above-named begs respectfully to submit as follows:

(1)

That.....

(2)

That.....

The opponent is bound to pay wages at the minimum rate of wages fixed by Government but he has paid less wages to the following employees

(1)

.....

(2)

.....

(3)

.....

The applicant estimates the value of the relief sought for the employees at the sum of Rs.....

The applicant prays that a direction may be issued under Sub-section (3) of Section 20 for-

(a)

payment of the difference between the wages due according to the minimum rate of wage fixed by Government and the wages actually paid', and

(b)

compensation amounting to Rs.....

The applicant begs leave to amend or add to or make alterations in the application, if and when necessary.

Date.....

Signature.....

The applicant does solemnly declare that what is stated above is true to the best of his knowledge, beliefs and information.

The verification is signed at on day of 20.....

Form VIII

Form of authority in favour of a Legal Practitioner or any official of a Registered Trade Union referred to in Section 20 (2) In the Court of the Authority appointed under the Minimum Wages Act, 1948, for.....Area.

Application No.....of 20.....

(1)

}

(2)

Applicant(s)

(3)

Versus

(1)

}

(2)

Opponents

(3)

I hereby authorise Mr.....a legal practitioner/an official of the registered trade union of.....to appear and act on my behalf in the above-described proceeding and to do all things incidental to such appealing and acting.

Date.....

Signature or thumb impression of the employee

Form IX

Form of summons to the Opponent to appear before the Authority when an application under Sub-section (2) of Section 20 or under Section 21 is entertained

(Title of the application)

To

(Name, description and place of residence)

Whereas has made the above said application to me under the Minimum Wages Act, 1948, you are hereby summoned to appear before me in person or by duly authorised agent, and able to answer all material questions relating to the application, or who shall be accompanied by some person able to answer all such questions, on the.....day of.....20 at..... O'clock in the.....noon to answer the claim; and as the day fixed for the appearance is appointed for the final disposal of the application, you must be prepared to produce on that day all the witnesses upon whose evidence and all the documents upon which you intend to rely in support of your defence.

Take notice that in default of your appearance on the day before mentioned, the application will be heard and determined in your absence.

Date.....

Signature of the authority

Form IX-A

[Rule 22]

Notices

Extracts from the Minimum Wages Act, 1948 and the Rules made thereunder

I. Whom the Act affects

(a)

The Act applies to persons engaged on scheduled employments on specified class of work in respect of which minimum wages have been fixed.

(b)

No employee can give up by contract or agreement his rights in so far as it purports to reduce the minimum rates of wages fixed under the Act.

II. Definition of wages

(1)

'Wages' means all remuneration payable to an employed person on the fulfilment of his contract of employment.

It excludes-

(i)

the value of any house accommodation, supply of light/water, medical attendance or any other amenity or any service extended by general or special order of the appropriate Government;

(ii)

contribution paid by the employer to any Pension Fund or Provident Fund or under any scheme of Social Insurance;

(iii)

the travelling allowance or the value of any travelling concession;

(iv)

the sum paid to the person employed to defray special expenses entailed on him by the nature of his employment;

(v)

gratuity payable on discharge.

(2)

The minimum rate of wages may consist of-

(i)

a basic rate of wages and a special allowance called the cost of living allowance;

(ii)

a basic rate of wages with or without a cost of living allowance and the cash value of any concessions, like supplies of essential commodities at concession rates;

(iii)

an all inclusive rate comprising of basic rate, cost of living allowance and cash value of concession, if any.

(3)

The minimum wages payable to employees of scheduled employments notified under Section 5, read with Section 3 or as revised from time to time under Section 10, read with Section 3 may be-

(a)

a minimum time rate;

(b)

a minimum piece rate;

(c)

a guranteed time rate;

(d)

an over-time rate;

differing with (1) different scheduled employments, (2) different classes of work, (3) different localities, (4) different wage periods, and (5) different age groups.

III. Computation and conditions of payment

The employer shall pay to every employee engaged in scheduled employment under him wages at a rate not less than the minimum rate of wages fixed for that class or employee.

The minimum wages payable under this Act shall be paid in cash unless the Government authorises payment thereof either wholly or partly in kind.

Wage periods shall be fixed for the payment of wages at intervals not exceeding one month.

Wage shall be paid on a working day within seven days of the end of the wage period or within ten days, if 1,000 or more persons are employed.

The wages of a person discharged shall be paid not later than the second working day after his discharge.

If an employee is employed on any day for a period less than the normal working day he shall be entitled to receive wages for a full normal working day; provided his failure to work is not caused by his unwillingness to work but by the omission of the employer to provide him with work for that period.

Where an employee does two or more classes of work to each of which a different minimum rate of wages is applicable, the employer shall pay to such employee in respect of the time respectively occupied in each such class of work wages at not less than the minimum rate in force in respect of each such class.

Where an employee is employed on piece work for which minimum time rate and not a minimum piece rate has been fixed, the employer shall pay to such employee wages at not less than the minimum time rate.

IV. Hours of work and holidays

The number of hours which shall constitute a normal working day shall be-

(a)

in the case of an adult not more than 10 hours

(b)

In the case of a child, not more than 8 hours.

The working day of an adult worker inclusive of the intervals of rest shall not exceed twelve hours on any day.

The employer shall allow a day of rest in every period of seven days. Ordinarily Sunday, the first day of the week, shall be the holiday.

When a worker works in an employment for more than the prescribed hours on any day or more than the prescribed hours in any week, he shall, in respect of overtime work, be entitled to wages at double time of his ordinary rate of wages.

V. Fines and deductions

No deductions shall be made from wages except those authorised by or under the rules.

Deductions from the wages of a person employed in scheduled employment shall be one or more of the following kinds, namely :

(i)

finer, in respect of such acts and omissions on the part of the employees as may be specified by the State Government by general or special order in this behalf. An employed person shall be explained personally and also in writing the act or omission in respect of which the fines are proposed to be imposed and given an opportunity to offer any explanation in the presence of another person. The amount of the said fine shall also be intimated to him. It shall be such as may be specified by the State Government. It shall be utilised in accordance with the directions of the State Government or any other officer authorised by them in this behalf;

(ii)

deductions for absence from duty;

(iii)

deductions or damage to or loss of goods expressly entrusted to the employed person for custody, or for loss of money for which he is required to account, where such damage or loss is directly attributable to his neglect or default. The employed person shall be explained personally and also in writing the damage or loss, in respect of which the deduction is proposed to be made and given an opportunity to offer any explanation in the presence of another person. The amount of the said deduction shall also be intimated to him. It shall be such as may be specified by the State Government;

(iv)

deductions for house accommodation supplied by the employer;

(v)

deductions for such amenities and services supplied by the employer as the Government may by general or special order authorise. These will not include the supply of tools and protectives required for the purposes of employment;

(vi)

deductions for recovery of advances or for adjustment of overpayment of wages ; such advances shall not exceed an amount equal to wages for two calendar months of the employed person and the monthly instalment of deduction shall not exceed one-fourth of the wages earned in that month;

(vii)

deductions of income-tax payable by the employed person;

(viii)

deductions required to be made by order of a Court or other competent authority;

(ix)

deductions for subscriptions to and for repayment of advances from any Provident Fund to which the Provident Fund Act, 1925, applies or any recognised Provident Fund as defined in Section 58-A of the Indian Income-tax Act, 1922, or any Provident Fund approved in this behalf by the Government during the continuance of such approval

(x)

deductions for payment to co-operative societies or to a scheme of insurance approved by the Government.

VI. Maintenance of registers and records

Every employer shall maintain a register of wages specifying the following particulars in respect of each employed

person-

(a)

the minimum rates of wages payable;

(b)

the number of days in which overtime was worked;

(c)

the gross wages for each wage period;

(d)

all deductions made from wages;

(e)

the wages actually paid and the date of payment.

Every employer shall issue wage-slips containing prescribed particulars to every person employed at least a day prior to the disbursement of wages.

Every employer shall get the signature or the thumb impresssion of every person employed on the wage-book and wage-slip.

Entries in the wage-books and wage-slips shall be properly authenticated by the employer or any person authorised by him in this behalf.

A muster roll shall be maintained by every employer and kept in the Form prescribed.

Every employer shall keep exhibited, at such places selected by the Inspector, notices in English and in a language understood by a majority of the workers of the following particulars in a clean and legible condition-

(a)

minimum rate of wages;

(b)

extracts from the Acts and Rules made thereunder;

(c)

name and address of the Inspector.

VII. Inspections

An Inspector can enter in any premises and can exercise powers of inspection (including examination of documents and taking of evidence) as he may deem necessary for carrying out the purposes of the Act.

VIII. Claims and complaints

Where an employee is paid less than the minimum rates of wages fixed for his class of work or less than the amount due to him under the provisions of this Act, he can make an application in the prescribed form within six months to the authority appointed for the purpose. An application delayed beyond this period may be admitted if the authority is satisfied that the applicant had sufficient cause for not making the application within such period.

Any legal parctitioner, official of a registered trade union, Inspector under the Act or other person acting with the permission of the Authority can make the complaint on behalf of an employed person.

A single application may be presented by or on behalf of any number of persons belonging to the same factory the payment of whose wages has been delayed.

A complaint regarding less payment of notified wages under Section 22 of the Act, can be made to the Court only with the sanction of the Authority within one month of the grant of such sanction.

A complaint under Section 22 of the Act can be made to the Court only by or with the sanction of an Inspector within six months of the date on which the offence is alleged to have been committed.

IX. Action by the Authority

The Authority may direct payment of the amount by which the minimum wages payable exceed the amount actually paid together with the payment of compensation not exceeding ten times the amount of such excess. The Authority may direct payment of compensation in cases where the excess is paid before the disposal of the application.

If a malicious or vexatious complaint is made, the Authority may impose a penalty not exceeding Rs. 50 on the applicant and order that it be paid to the employer.

Every direction of the Authority shall be final.

X. Penalty for offence under the Act

Any employer who pays to any employee less than the amount due to him under the provisions of this Act, or infringes

any Order or Rules in respect of normal working day, weekly holiday, shall be punishable with imprisonment of either description for a term which may extend to six months or with fine which may extend to five hundred rupees or with both. Any employer who falls to maintain a register or record required to be maintained under Section 18, shall be punishable with fine which may extend to five hundred rupees.

XI. Minimum rates of wages, fixed

Name of undertaking.....

Serial NoCategory of employees.....Minimum wages.....

XII. Name and address of the Inspector (s)

Name..... Address.....

[Form-X]

[Substituted vide O.G.E. No. 454 dated 27.3.2009.]

[Rule 26(1)]

Combined Muster Roll-Cum-Register of Wages

In lieu of 1. Form No. 29 (Muster Roll) Rule 104 of Orissa Factories Rules, 1950

2. Form No. V (Muster Roll) Rule 26(5) of Orissa Minimum Wages Rules, 1954

3. Form No. X (Wages) Rule 26(1) of Orissa Minimum Wages Rules, 1954

4. Form No. XIII (Muster Roll) Rule 33(1) of Orissa Beedi & Cigar Workers (Condition of Employment) Rules, 1969

5. Form No. XVI (Muster Roll) Rule 239(1) (a) of Orissa Building & Other Construction Workers etc. Rules, 2002

6. Form No. XVII (Register of Wages) Rule 239 (1) (a) of Orissa Building & Other Construction Workers etc. Rules, 2002

7. Form No. XV111 (Register of Wage-cum-Muster Roll) Rule 239(1) (a) of Orissa Building & Other Construction Workers etc. Rules, 2002

8. Form No. XVII (Muster Roll) Rule 52(2)(a) of Orissa Inter-state Migrant Workmen (RE&CS) Rules, 1980

9. Form No. XVIII(Register of Wages) Rule 52(2)(a) of Orissa Inter-State Migrant Workmen (RE&CS) Rules, 1980

10. Form No. 10 (Register of payment) of Orissa Shops and Commercial Establishment Rules, 1958

11. Form No. 8 (Daily record of works & orders relating to compensating Leave and Deduction from wages of Orissa Shops and Commercial Establishment Rules, 1958

12. Form X (Muster Roll) Rule 36 of Orissa Motor Transport Workers Rules, 1966

13. Form XIII (Wages) Rule 77(2)(a) of Orissa Contract Labour (R&A), Rules, 1975

14. Form XII (Muster Roll) Rule 77(2)(a) of Orissa Contract Labour (R&A), Rules, 1975

15. Form VI (Muster Roll) Rule 9 of Orissa Industrial Employment (N&F) H. Rules, 1972

Name and Address of theFactory /Establishment

Name and Address of theContractor (if any)/

Place of work

Name of Address of thePrincipal employer

Month/Year

Sl. No.

1. Name of the employee2. Father/ Husband

name

Sex M/F

Date of Birth

Emp No./Sl. No. in Register of employees

Degn/ Deptt.

Date of joining

ESI No.

P.F. No.

ATTENDANCEUnits

of work done (if piece rated)

No. of payable days/ Total units of work done

Name of N & FH for which wages have been paid

1

2

3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29
30
31

Month & Year

EARNINGS

Basic

DA/ VDA

HRA

Conv. allow.

Med. allow.

ATT/ allow.- bonus

Spl. all

OT

Misc Earnings

Others

Total

ESI

DEDUCTIONS

PF

PT

TDS

Socy

Insurance

Sal. Adv.

Fine

Damage

Others

Total

Net payable

Date of payment

Complete Signature of the Employer/Principal Employer/Authorized Signatory]

Form XI

[Rule 26 (2)]

Wage Slip

Name of establishment

Place.....

1. Name of employee with father's/husband's name...

2. Designation.....

3. Wage period.....

4. Rate of. wages payable-

(a)

Basic.....

(b)

Dearness allowance.....

5. Total attendance/unit of work done.....

6. Overtime wages.....

7. Gross wages payable.....

8. Total deduction.....

9. Net wages paid.....

Employee's signature/Thumb impression

Pay-in-charge

Form XII

[Rule 26 (6)]

Working hour Notice

Name of scheduled employment.....

Place.....

District.....

Name of employer.....

Periods of work

Men

Women

Children

Description of groups

Total No. of men employed

Total No. of women employed

Total No. of children employed

Groups letter

Nature of work

Groups

ABCDEF

ABCDEF

ABCDEF

FromToFromToFromTo

ABCDEF

(Signed)

.....

Manager/Employer

Date on which this notice first exhibited

Notifications

The 3rd April, 2001

No. 9016 - Whereas the minimum rate of wages for unskilled, semiskilled, skilled and highly skilled categories of employees in 83 schedule of employments was fixed/revised by Government in Labour & Employment Department, vide Notification, dated the 29th April 1999 in S.R.O. No. 339/ 99 to 421/99 published in Orissa Gazette on the 29th April 1999 and effected from the 1st May 1999 with the proviso that in addition to the said rate of wages a special allowance called as V.D.A. shall be payable @ Rs. 2.50 (Rupees two and paise fifty) only per day for every 50 point of rise in all India Consumers Price Index Number (Base-1982-100) for Industrial Workers or within a block period of two years whichever is earlier and the Labour Commissioner, Orissa has been authorised to issue notification thereof for all the 83 schedule employments;

And whereas, the block period of two years is going to be completed by the 30th April 2001, and within the period of two years, the rise in All India Consumers Price Index Number falls short of 50 Points.

Now, therefore, I, Shri Dandanirodha Mishra, Labour Commissioner, Orissa.in exercise of powers delegated to be in the aforesaid notification do hereby notify that the special allowance called as V.D.A. @ Rs. 2.50 (Rupees two and paise fifty) only shall be payable per day to the un-skilled, semi-skilled, skilled and highly skilled categories of employees in all the 83 schedule of employments (list enclosed) in addition to Minimum rate of Wages notified, vide Labour and Employment Department notification cited above.

This V.D.A/Special Allowance shall come into effect from the 1st day of March 2001.

D. Mishra.

Labour Commissioner

Sl. No.

Name of the Employment

(1)

(2)

1.

Salt Pans

2.

Printing Press

3.

Tile and Brick Making

4.

Private Road Transport

5.

Hotels Eating, House and Restaurants

6.

Distilleries

7.

Shops and Establishment

8.

Metal Industry (except the cottage and village scale units)

9.

Cinema Industry

10.

Saw Mills

11.

Timber Trading (excluding felling and sawing)

12.

Handloom and Hosiery

13.

Bamboo Forest Establishment

14.

Timber Trading (including feeling and sawing)

15.

Kendu Leaf collection

16.

Construction or maintenance of Dam, Embankments, Irrigation Projects and sinking of Wells and Tanks.

17.

Refractory Industry

18.

Ceramic and Pottery Industry

19.

Chemical Industry

20.

Minor Engineering Industry (employment less than 50 persons)

21.

Collection of Sal Seeds

22.

Rice Mill, Flour Mill or Dal Mill

23.

Tabaco (including Bidi making) Manufactory

24.

Oil Mill

25.

Jute Industry and Jute Twine Industry

26.

Public Motor Transport

27.

Stone-breaking or Stone-crushing

28.

Construction or maintenance of Roads or in building operations

29.

Bakeries and Confectioneries including Biscuit making

30.

Cement Pipe making and allied products industry

31.

Wood works and furniture making industries

32.

Soap and Detergent Manufactory

33.

Automobile servicing, repairing garages and workshops

34.

Manufacture of Paints, Varnishes

35.

Ice factory and Cold Storages

36.

Finishing, Dyeing of Yarn and Fabrics, Painting, Knitting and Embroidery

37.

Trunks, Suitcase, Bucket manufactory

38.

Manufacture of Utensils including Aluminium and Hindalium products

39.

Manufacture of plastic products including toys

40.

Manufacture of matches, fireworks, explosives

41.

Foundry Industry with or without attached machine shop

42.

Regulated markets, Marketing Societies, Co-operative Societies and Banks

43.

Cashew processing establishment

44.

Petrol and Diesel Oil pumps

45.

Laundry including dry washing

46.

Khadi Village Industries including manufacture of Khandasari and other products

47.

Powerloom Industry

48.

Carpet Weaving Industries

49.

Clay Pottery

50.

Manufacture of Coke and Burnings Coals

51.

Glass Industries

52.

Cotton Ginning and Pressing Industry

53.

Ayurvedic and Unani Pharmacy

54.

Coil Industry

55.

Paper and Cardboard Industry

56.

Manufacture of Electrical Bulbs

57.

Manufacture of Radio by assembling with parts

58.

Brash and Bell - metal Industry

59.

Manufacture of Brush and Brooms

60.

Manufacture of ropes

61.

Manufacture of nails and pins

62.

Manufacture of cold drinks, Soda and other allied products

63.

Local authority

64.

Fisheries and Seafood Industry

65.

Tamarind collection

66.

Gold and Silver ornaments and articles of artistic design

67.

Dispensary of Medical Practitioner in any establishment of medical consultant or in any Clinical or Pathological Laboratory

68.

Motor body building

69.

Forest produce such as Genduli Gum, Mahua making of coal and resine

70.

Siali leaf plucxers

71.

Public Health Engineering

72.

Graphite Industry including beneficiation

73.

Spinning Mills

74.

Pharmaceutical Industry

75.

Liquified Petroleum Gas manufacture and distribution

76.

Electricity Board

77.

Social Forestry

78.

Contingent and casual employees in Government and other establishments

79.

Leather Industry

80.

Readymade Garment Industry

81.

Rubber and Rubber products industries

82.

Agriculture

83.

Private Security Agencies and Private Security Services

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Translation